

Additionally, the May 27 notice again refers to "Kelvin 'Kelly' 'Gab' Beckham," a name which is not used in the petition.

Revised allegations needed: petitioner identifies himself as a sibling of decedent and that decedent was survived by 6 siblings (see ¶ 8), but also that decedent was not survived by siblings. ¶ 6f alleges there are no issue of parents of decedent (¶ 6b) or issue of grandparents of decedent (¶ 6d). Siblings are issue of both parents and grandparents.

17. S-PR-0014093 In Re the Jerry Joan Oukrop Liv Trust

Appearance is required for hearing on petition to determine trust property.

Missing 30 days' personal service of notice of hearing with copy of the petition to US Bank. Prob.C. § 851(a)(2).

Missing verification to petition. Prob.C. § 1021.

It is recommended the petition be denied, as follows.

Petitioner does not allege facts bringing the claim within *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the account is not identified any way in the trust or any trust exhibit.

Petitioner does not allege facts showing that the IRA was either an asset of the 2014 trust or was payable on death to the trustee of the 2014 trust. The bank account statement does not identify the 2014 trustee as owner. Petitioner's prior counsel's communication appears to clarify the bank's position that the account has a pay-on-death designation in favor of a 2007 trust, which counsel argued did not exist. Counsel accordingly argued the bank should accept a small estate affidavit by the trustee of the 2014 trust. This is not a Prob.C. § 13105(b) petition to compel the bank to release the account pursuant to the affidavit.

Although a pourover will can be the basis for a small estate affidavit, it is insufficient for Prob.C. § 850 relief. The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior* to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280-281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

18. S-PR-0014099 In Re the Rosemary Lewings 2022 Trust